

Shiv Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 June 2018 · Writ-C No. 21056 of 2018 · **Writ dismissed; relegated to appeal under Paragraph 6.8.**

HEADNOTE

A consumer challenged two electricity demand notices on the footing that a final report had been submitted in the theft FIR. The Court held that assessment of electricity dues and criminal theft are distinct, so non-prosecution does not wipe out assessed dues. The notices were challengeable by appeal under Paragraph 6.8 of the Electricity Supply Code, 2005. The writ was dismissed for alternative remedy.

FACTUAL SUMMARY

Shiv Sharma filed a writ petition in the Allahabad High Court challenging two electricity demand notices dated 31 October 2017 for Rs.1,03,330 and Rs.26,500. He contended that he was not involved in theft of electric energy, a final report having been submitted in the criminal case that followed the FIR. Counsel appeared for respondents 2 and 3. The Court considered whether the demands could be interfered with in writ jurisdiction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternative-remedy-appeal

HOLDING

Assessment of electricity dues and theft of electric energy are separate: a final report, or a finding that a theft charge is not worth prosecuting, does not mean the consumer is not liable to pay assessed dues. A demand notice said to be incorrect or illegal may be challenged by appeal under Paragraph 6.8 of the Electricity Supply Code, 2005; the writ was dismissed on that alternative remedy. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICES DATED 31.10.2017 WERE INCORRECT OR ILLEGAL

Left to the statutory appeal under Paragraph 6.8. ¶ 1